

		Rodriguez and Pablo Rodriguez’s counsel of record at Glotzer & Leib LLP. The moving papers must be served on all parties who have appeared in the action. (See Code Civ. Proc., §§ 1005, subd. (b) [“all moving and supporting papers shall be served and filed at least 16 court days before the hearing”], 1015 [where a party has appeared in the action or proceeding through an attorney, “the service of papers, when required, must be upon the attorney instead of the party, except service of subpoenas, of writs, and other process issued in the suit, and of papers to bring the party into contempt”]; see also <i>Edward W. v. Lamkins</i> (2002) 99 Cal.App.4th 516, 529 [fundamentals of due process require notice and an opportunity to be heard].) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (Cal. Rules of Court, rule 3.1300(c).) Defendant is ORDERED to do the following by no later than Friday June 5, 2026, at 4:00 p.m.: (1) serve all moving papers on plaintiffs’ counsel; and (2) file a proof of service of the moving papers with the court (see, e.g., Judicial Counsel of California Form POS-040 or POS-050 [proof of service forms approved for optional use]). The Order to Show Cause re: Dismissal (Default Judgment) scheduled for June 11, 2026, is DISCHARGED and that hearing will go off calendar. This motion is CONTINUED to July 10, 2026, at 9:30 a.m. in Department C12. The Court will also schedule a Case Management Conference on that same date and time. Clerk shall give notice.
7.	Xu vs. EQUITATION ROYALE LLC 25-01535570	Motion Permitting Service of Summons and First Amended Complaint Plaintiffs John Kim and Christine Ting Xu’s motion to effectuate the service of the summons and amended complaint via the California Secretary of State as to defendants Airlink Global LLC and Equitation Royale LLC is granted. Plaintiffs have demonstrated “reasonable diligence” by “set[ting] forth facts detailing all attempts to serve the defendant by each of the

		methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) See declarations of plaintiff Kim, process server Hernandez and investigator Candias. Plaintiffs may serve the summons and amended complaint, along with a copy of this order, on the California Secretary of State. Service shall be completed within 30 days after delivery to the Secretary of State. Ca. Corp. Code section 17701.16. The Court finds this motion (ROA 63) and the one set for May 29, 2026, (ROA 66) are virtually IDENTICAL. Based on the ruling on this motion (ROA 63), the Court now takes the motion set on May 29, 2026, (ROA 66) OFF CALENDAR. The Case Management Conference is CONTINUED to December 17, 2026, at 9:30 a.m. in Department C12. Clerk to give notice.
8.	Velocity Investments, LLC vs. Villegas 24-01433786	1. Motion to Quash (Service of Summons) 2. Case Management Conference Defendant Frank Villegas’s Motion to Quash Service of Summons and the Case Management Conference were both CONTINUED to August 7, 2026, at 9:30 a.m. in Department C12.
9.	M&Y Personal Injury Lawyers vs. Solution Law APC 25-01517436	1. Motion for Judgment on the Pleadings 2. Case Management Conference Defendant Solution Law, APC’s motion for judgment on the pleadings is DENIED. (Code Civ. Proc., § 438 [authorizing motion].) <u>1st cause of action: common counts.</u> This cause of action states sufficient facts to allege a common count for money had and received. (<i>Farmers Ins. Exchange v. Zerin</i> (1997) 53 Cal.App.4th 445, 460 [“A cause of action for money had and received is stated if it is alleged the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff’”]; <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [complaint is good against a general demurrer so long as the essential facts of some valid cause of action are alleged]; Complaint, ¶¶ 5-8 [plaintiff’s